

Amit Mohan v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 15 March 2023 · Writ - C No. 7461 of 2023 · **Writ disposed; theft recovery withdrawn; fresh order under Supply Code**

HEADNOTE

A recovery citation for electricity dues in a theft case was withdrawn by the Electricity Department. The writ was disposed of with liberty to pass a fresh order after hearing, strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Amit Mohan challenged a recovery citation dated 20 January 2023 raised by the electricity department for dues in a case of theft of electricity. On 3 March 2023 the Allahabad High Court allowed the department a week to obtain instructions and directed that no coercive action be taken on the citation meanwhile. On 15 March 2023 counsel for the department told the Court that the impugned recovery had been withdrawn and that a fresh order would be made after the petitioner was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.3(e)

Theft recovery: fresh order after hearing under the Supply Code

HOLDING

On the Electricity Department's statement that the recovery citation dated 20.01.2023 for dues in a theft case had been withdrawn, the writ was disposed of with liberty to the Department to pass a fresh order after giving the petitioner an opportunity of hearing, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2

FLAG Order does not number the clause; 3.3(e) is the catalog hit for a theft recovery to be re-decided after hearing

PRINCIPLE TAGS

hearing-before-fresh-order-in-theft-case The Court did not decide the theft dues. It recorded withdrawal of the citation and left the Department to pass a fresh order only after hearing and strictly under the Supply Code procedure. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT WAS MADE OUT AND WHAT SUM, IF ANY, IS RECOVERABLE

The impugned citation was withdrawn. Quantum and liability were left to a fresh order after hearing. ¶ 2